

**FIRST INFORMATION REPORT
(U/s 173 B.N.S.S.)**

Book No. **1450**

Serial No. **004**

1. District: PS: Year: FIR No.: Date:
New Delhi CBI/ACB/New Delhi 2024 RC0032024A0052 27.12.2024

2. (1) Act - PC Act 1988 Sections: 7
(as amended in 2018)
(2) Act - Sections:
(3) Act - Sections:
(4) Other Acts & Sections-

3. (a) Suspected Offence- **Demand of undue Advantage by public servant.**
(b) Day: Date: Time:

(c) Information received at PS: **CBI, ACB, New Delhi** Dated: **27.12.2024**
Entry No. **07** Date: **27.12.2024** Time: **07:45 P.M.**

4. Type of information – (Written / Oral): **Written**

5. Place of occurrence **Delhi**

(a) Direction & Distance from

Beat No. -

(b) Address:

(c) In case, outside the limit of this Police Station, then

Name of PS - District -

6. Complainant / Informant: credible source information

(a) Name : Sh. Firoz Malik

(b) Father's/Husband's Name : S/o Sh. Alijaan

(c) Date of Birth :

(d) Nationality : Indian

(e) Passport No. **NA** Date of Issue **NA** - Place of issue **NA**

(f) Profession : **Private Person**

(g) Address : **R/o- F-11/17, Saheen Bagh, Okhla, New Delhi**

7. Details of known/suspected/unknown accused with full particulars: -
(Attached separate sheet, if necessary)

1. Shri Sanjay Sharma, Zonal In-charge, Mother Dairy, South Zone, Delhi.

8. Reasons for delay in reporting by the complainant/informant: -

No delay

9. Particulars of properties Stolen (Attach separate sheet, if necessary):

10. Total value of property stolen: -

11. Inquest Report/U.D. Case No., if any,: -

12. First information contents (Attach separate sheet, if required):

A written complaint dated 27.12.2024 from Shri Firoz Malik S/o Shri Alijaan, R/o-F-11/17, Saheen Bagh, Okhla, New Delhi was received in office and copy thereof is enclosed herewith. The Complaint and subsequent verification report (enclosed) dated 27.12.2024 prima facie disclose commission of offence punishable under section 7 of PC Act 1988 (as amended in 2018) on the part of Shri Sanjay Sharma, Zonal In-charge, Mother Dairy, South Zone, Delhi.

Therefore, a regular case under section 7 of PC Act 1988 (as amended in 2018) has been registered against Shri Sanjay Sharma, Zonal In-charge, Mother Dairy, South Zone, Delhi and entrusted to Sh. Balbir Singh, Inspector, CBI, ACB, New Delhi for investigation.

सेवा में

श्री मान पुलिस अधीक्षक
सी जे आर 25 सी जे
दिल्ली

विषय :- श्री सेजय शर्मा जो नला रैनचाजी मंदर से
द्वारा 60 हजार की रिश्वत मागने के
संदर्भ में शिकायत

महोदय
मैं शिकायत मलिक पुत्र श्री अल्लिजान निवासी 11/12
श्रीमान लाल ओमला दिल्ली का निवासी हूँ मैं मंदर
सेजय का डिस्ट्रीक्ट हूँ और इस समय मल्लपुरा मंदर सेजय
कालोनी दिल्ली क्षेत्र में मंदर सेजय के रूख का डिस्ट्रीक्शन
करता हूँ मेरा डिस्ट्रीक्शन कोड नं. 79054 है
मंदर सेजय की एक 2-कम के नल कर एक केट पर एक
500 मी का पार्कच मुक्त दिया जा रहा है। यह 2-कम पार्कच
11/12/2024 से लागू है। श्री सेजय शर्मा जो नला रैनचाजी मंदर
सेजय दिल्ली जो कि वरिष्ठ दिल्ली क्षेत्र का रैनचाजी है श्री
सेजय शर्मा ने मुझे कर का उमर जारी 2-कम के नल जो
श्री में मिला 2 को रूख का दायरे का प्लॉट में से 60000 रूपये
नहीं दिये लें वह मेरा डिस्ट्रीक्शन शीप को रूख कर देना
श्री मल्ल में श्री सेजय शर्मा जो नला रैनचाजी मंदर सेजय की
60000 - रूपये रिश्वत की शर्त नहीं देना चाहता
अतः अपने अनुशेष है कि श्री सेजय शर्मा पर उचित
कार्रवाई कार्य करा करने का कृपा करें यशस्वी

11/12 श्रीमान लाल
ओमला नि दिल्ली
7982188581

शिकायत मलिक
9/12/2024
प्रि. मल्लिक

VERIFICATION MEMO IN CO-98/2024 dated 27.12.2024

Place – CBI, ACB, New Delhi

Dated – 27.12.2024

Team members:-

1. Davinder Kumar, Inspector of Police, CBI, ACB, New Delhi (Verification Officer)
2. Shri Firoj Malik S/o Late Shri Alijaan, R/o – F-11/17, Shaheen Bagh, Okhla New Delhi, Mobile No. 7982188581, (Complainant)
3. Shri Shiv Kumar, Junior Clerk, Engineering Department, Room No.441, Fourth Floor Northern Railways, Baroda House, New Delhi (Independent witness)
4. Shri Naveen Kumar, SI, CBI, ACB New Delhi.

As per the direction of SP, ACB, CBI, Delhi to verify the content of complaint dated 27/12/2024 made by Sh. Firoj Malik S/o Shri Alijaan, R/o – F-11/17, Shaheen Bagh, Okhla New Delhi, Mobile No. 7982188581, the presence of Independent Witness Sh. Shiv Kumar, Junior Clerk, Engineering Department, Room No.441, Fourth Floor Northern Railways, Baroda House, New Delhi was secured in office through Duty Officer, CBI ACB Delhi. The complainant was introduced to the above said independent witness and vice-versa. The CBI team consisting the VO Sh. Davinder Kumar, Inspector and Shri Naveen Kumar, SI along with the above said complainant and the independent witness assembled at CBI, ACB office at about 12:30 PM on 27/12/2024. The purpose of the assembly was explained to the independent witness and other team members. The complaint dated 27/12/2024 was read over, shown and explained to the independent witness.



It is alleged in the complaint that the complainant Shri Firoj Malik is Distributor of Milk of Mother Dairy and his distribution number is 77054. A scheme has been launched by Mother Dairy wherein to give free one pouch of milk, on one crate. This scheme has been initiated from 01.12.2024. Shri Sanjay Sharma (Suspect Officer), Zonal Incharge, Mother Dairy, South Zone, Delhi told the complainant, if, he did not give the amount of

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Rs.60,000/- in lieu of scheme of free milk pouches, he will cancel the distributorship of the complainant. As the complainant did not want to pay the said bribe amount, he made a complaint dated- 27/12/2024 to SP, CBI, ACB, Delhi to take the legal action against the suspect officer (SO).

In order to verify the allegations, a new black color Sony make Digital Voice Recorder (DVR) & a sealed packed micro SD card make Simmtronics 16 GB memory Card were arranged. The functioning of the DVR was explained to all the persons. After ensuring the blankness of the DVR, the said micro SD was taken out of its sealed packing and was inserted in the DVR in the presence of independent witness. The DVR was set so as the recorded conversation get directly stored in the installed micro SD card. After ensuring the blankness of the memory card, the introductory voice of the above said independent witness was recorded in the said memory card through DVR.

Thereafter, in order to verify the allegation made in the complaint, SI Naveen Kumar and I, along with the complainant and independent witness left the CBI Office at about 01.30 PM for Apollo Hospital, Sarita Vihar, Delhi in official vehicle.

In order to reach the spot, the vehicle was parked at safe distance, Near Apollo Hospital, Delhi. After giving necessary briefing in the vehicle to the complainant it was decided to call the suspect officer in order to ascertain his location, a phone call was made from the mobile phone of the complainant. Accordingly, complainant from his mobile phone number 7982188581 made a phone call to the SO to his mobile number 8383061933 at about 02.01 PM. In the said call, the SO asked the purpose of call. The complainant told he to want meet him.

At about 02.04 PM a Whatsapp call was received from SO to the mobile phone of the complainant. In the said call, the SO told the complainant that he will meet him at Mother Dairy, Delhi. The above two calls were made in the presence of the independent witness by keeping mobile phone of the complainant in speaker mode and both of the calls were got recorded in the memory card through the DVR.

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Thereafter, it was decided to send the complainant to meet the SO at Mother Dairy, Near Pandav Nagar, East Delhi. All team members, complainant and independent witness proceeded to the Akshar Dham Flyover, Delhi.

The above said independent witness was asked to remain close to the complainant and try to see the person with whom the complainant will converse and try to overhear the conversation as far as practically possible but complainant informed that suspect officer is suspicious of strange persons and will not talk about bribe money in front of any other person. Therefore, the independent witness was directed to follow the complainant and maintain safe distance.

After reaching Akshar Dham, Flyover, at about 2:57 PM DVR was fixed, in recording and hold mode, on the right hand under the sweater worn by the complainant. The VO Davinder Kumar and Naveen Kumar, SI along with the independent witness remained present in the office vehicle.

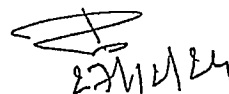
Thereafter, the complainant went to meet the SO near Mother Dairy, Near Pandav Nagar, Delhi from Auto-rickshaw to avoid any suspicion from the suspect officer. The witness was dropped near Mother Dairy where he took his position to keep an eye on both complainant and the suspect officer. The independent witness came to the CBI vehicle after sometime and told he did not see the complainant and the suspect. The complainant came back to the parked vehicle near Mother Dairy at about 3:18 PM. After reaching to vehicle, the DVR was taken back from the complainant by SI Naveen Kumar and removed from hold mode and switched off and then the team left the spot for the CBI office and reached the CBI office at around 4:00 PM.

In the meantime, the complainant was asked to narrate the incident then in his narration he stated that at about 03.00 PM, he made call to SO and told he reached at Mother Dairy. The SO called the complainant and asked to meet him under foot over bridge, Shakarpur, Delhi. Thereafter, as per direction of SO, he reached under Foot over bridge, Shakarpur, Delhi to meet SO. He also revealed that the suspect officer


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negotiated the bribe amount and he agreed to take amount of Rs.45,000/- from him.
The SO told, he will take amount today or tomorrow i.e. 28.12.2024.

On being asked about arrangement of above said bribe amount, the complainant told he could not arrange the amount of Rs.45,000/- today i.e. 27.12.2024, he will produce the said amount tomorrow i.e. 28.12.2024.

The recorded conversation of DVR was also heard in the CBI Office which also corroborated the above explained version of the complainant. The Memory Card was taken out from the DVR and an investigation copy of the Memory Card was prepared with the help of Write Blocker in the official Desktop. The Memory Card was then kept in its plastic cover and the plastic cover was kept in its paper cover and the paper cover was signed by the complainant Shri Firoj Malik, Independent witness Shri Shiv Kumar and VO Davinder Kumar and was marked as "Q-1 in CO-98/2024". Then the paper cover was kept in brown envelope and sealed with CBI Seal in the presence of Independent Witness. The brown envelope was signed by the VO, complainant and independent witness. The brown envelope was also marked as "Q-1 in CO-98/2024" and taken in police possession vide this memo. The specimen seal impression in ink has been taken on each page of verification memo as well as on separate sheet of papers in lac and ink for future requirements in the presence of independent witness and these separate sheets were signed by the independent witness and VO. The CBI Brass seal having No. 250 and DVR was given to the independent witness with direction to produce on the next day i.e. 28/12/2024.



The verification has, prima facie, revealed the SO has been demanding bribe of Rs.60,000/- and after negotiated, the SO agreed to accept bribe of Rs.45,000/- from the complainant in lieu of cancellation of distribution-ship of the complainant.

In view of above, it is recommended that a regular case may be registered U/s 7 of PC Act-1988 (as amended in 2018) against Sh. Sanjay Sharma, Zonal Incharge of Mother Dairy, South Zone, Delhi.

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The verification memo has been prepared in CBI office and the contents of the memo has been explained to all the signatories of this memo and the memo is being signed by signatories of this memo in token of its correctness. The proceeding of this memo concluded at about 07.20 PM on 27/12/2024. The complainant and independent witness were directed to keep the proceeding secret and come to CBI office next day i.e. 28.12.2024..

Firoj Malik
27/12/2024

Firoj Malik
(Complainant)

Shiv Kumar
27/12/24

Shiv Kumar
Independent Witness

Naveen Kumar
27/12/24

Naveen Kumar
SI/CBI/ACB/New Delhi

Davinder Kumar
27/12/24

Davinder Kumar,
Inspector/Verifying Officer,
CBI/ACB/New Delhi



13. Action taken : Since the above information reveals commission of offence (s) u/s as mentioned at Item no. 2

(1) Registered the case and took up the investigation or

Regular Case is registered

(2) Directed (Name of IO): Rank: No. Took up for investigation

Shri Balbir Singh

Inspector, CBI, ACB, Delhi

(3) Refused investigation due to or

(4) Transferred to PS - District - on point of jurisdiction -

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant


Signature of Officer in-charge 24/12/2024
Police Station:
Name: **Rajiv Kumar**
Rank: **Supdt. of Police**
CBI:ACB: Delhi

15. Date and time of dispatch to the Court

RAJIV KUMAR
I/c Supdt. of Police
CBI, ACB, New Delhi

Signature of recording Officer with date